

25LBCV02553 25LBCV02553

County: los-angeles

Division: Civil Law and Motion

Department: S28

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Case Number: 25LBCV02553 Hearing Date: September 24, 2026 Dept: S28

BACKGROUND

On

September 12, 2025, plaintiff Omar Sanchez ("Plaintiff") filed a complaint against defendant American Honda Motor Co., Inc. ("Defendant") and DOES 1 through 10, inclusive, alleging the following causes of action: (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment.

On

December 2, 2025, Defendant filed an answer.

On

June 23, 2026, Defendant filed the following motions: (1) Motion to Compel Further Responses to Request for Production, Set One, and Request for Monetary Sanctions (the "RPD Motion"); (2) Motion to Compel Further Responses to Special Interrogatories, Set One, and Request for Monetary Sanctions (the "SROG Motion"); and (3) Motion to Compel Further Responses to Form Interrogatories, Set One, and Request for Monetary Sanctions ("the "FROG Motion") (collectively, the "Motions").

On

August 21, 2026, Plaintiff filed respective oppositions to the FROG Motion and the RPD Motion.

On

August 25, 2026, Plaintiff filed an omnibus reply as to the FROG Motion and the RPD Motion.

On

August 25, 2026, Plaintiff filed an opposition to the SROG Motion.

As

of Monday, September 21, 2026, as of 1:20 P.M., no reply has been filed as to the SROG Motion.

DISCUSSION

Applicable

Law

A party may move for an order compelling a further response to interrogatories where: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under CCP § 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection is without merit or is too general. (Code Civ. Proc., § 2030.300, subds. (a)(1)-(3).) A motion to compel further responses to interrogatories “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1).) The court must impose monetary sanctions in connection with a motion to compel further responses to interrogatories “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

On receipt of a

response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection to the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a)(1)-(3).) A motion brought pursuant to Code Civ. Proc. § 2031.310 “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).) The court must impose monetary sanctions in connection with a motion to compel further responses to requests

for production of documents “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (d).) 2

Analysis

A. The Untimely Further Responses of Plaintiff

Initially, the Court notes that Plaintiff has now served verified further responses to the

discovery at issue. (See Declarations of Paul Peterson Filed August 21, 2026 ¶ 3; see also Declaration of Paul Peterson Filed August 25, 2026 ¶ 3.)

In the omnibus reply, Defendant argues that “Plaintiff’s belated service of discovery responses after [Defendant] incurred the expense of preparing and filing the motions does not preclude an award of monetary sanctions.” (Reply Filed August 25, 2026 at p. 2:7-8.)

Given that Plaintiff has now served verified further responses to the discovery at issue, and Defendant does not take issue with the sufficiency of such responses, the requests to compel further responses to form interrogatories, special interrogatories, and request for production, set one are DENIED as MOOT.

B. Monetary Sanctions

Defendant requests the imposition of monetary sanctions in the sum of \$1,500.00 per motion against counsel for Plaintiff. (See Declarations of Alina Mooradian Filed June 23, 2026 (“Mooradian Decls.”) ¶ 7.) Counsel spent 1.5 hours drafting each of the Motions and anticipates spending 1.5 hours drafting the replies and attending the hearing. (Id.) Counsel has an hourly rate of \$500.00 per hour. (Id.)

While

the Court recognizes that the failure of Plaintiff to provide timely further discovery responses warranted the Motions (See Mooradian Decls. ¶¶ 4-6), the Court denies the request for monetary sanctions. The Court notes that defense counsel only sent a meet and confer letter via e-mail to Plaintiff's counsel concerning the purportedly deficient discovery responses. (Id. ¶ 5, Ex. C.) Defendant was required to meet and confer "either in person, by telephone, or by videoconference." (Code Civ. Proc., § 2016.040, subd. (a).) Meeting and conferring via letter is insufficient. Defendant has not satisfied the meet and confer requirement as to any of the Motions.

Due

to the failure of defense counsel to properly meet and confer, the Court DENIES the request for monetary sanctions as to each of the Motions.

CONCLUSION

Based on the foregoing, the Motions are
DENIED.

The requests to compel further responses to
set one of Defendant's form interrogatories, special interrogatories, and request
for production are DENIED as MOOT.

The request for monetary sanctions as to each
of the Motions is DENIED.